

FORM F31 (RULE 10-6 (3))

No. _____

Registry _____

In the Supreme Court of British Columbia

Between

Claimant: _____

and

Respondent: _____

NOTICE OF APPLICATION

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

Name(s) of applicant(s): _____

To: _____

TAKE NOTICE that an application will be made by the applicant(s) to the presiding judge or associate judge at the courthouse at

on _____ at _____ for the order(s) set out in Part 1 below.

The applicant(s) estimate(s) that the application will take : _____ hours _____ minutes

☐ This matter is within the jurisdiction of an associate judge.

☐ This matter is not within the jurisdiction of an associate judge.

PART 1: ORDER(S) SOUGHT

PART 2: FACTUAL BASIS

PART 3: LEGAL BASIS

PART 4: MATERIAL TO BE RELIED ON

Affidavit # _____ of _____ made _____

Financial Statement: _____

TO THE PERSONS RECEIVING THIS NOTICE OF APPLICATION: If you wish to respond to this notice of application, you must, within the time for response to application described below,

- (a) file an application response in Form F32,
- (b) file the original of every affidavit, and of every other document, that
 - (i) you intend to refer to at the hearing of this application, and
 - (ii) has not already been filed in the family law case, and
- (c) serve on the applicant 2 copies of the following, and on every other party one copy of the following:
 - (i) a copy of the filed application response;
 - (ii) a copy of each of the filed affidavits and other documents that you intend to refer to at the hearing of this application and that has not already been served on that person;
 - (iii) if this application is brought under Rule 11-3, any notice that you are required to give under Rule 11-3 (9).

Time for response to application

The documents referred to in paragraph (c) above must be served in accordance with that paragraph,

- (a) unless one of the following paragraphs applies, within 5 business days after service of this notice of application,
- (b) if this application is brought under Rule 11-3, within 8 business days after service of this notice of application, and
- (c) if this application is brought to change, suspend or terminate a final order, to set aside or replace the whole or any part of an agreement filed under Rule 2-1(2) or to change, suspend or terminate an arbitration award filed under Rule 2-1.2(1), within 14 business days after service of this notice of application.

Date: _____

Signature of

☐ Filing party ☐ Lawyer for applicant(s)

To be completed by the court only:

Order made

- ☐ in the terms requested in paragraphs _____ of Part 1 of this notice of application
- ☐ with the following variations and additional terms:

Date: _____

Signature of ☐ Judge ☐ Associate Judge

APPENDIX

THIS APPLICATION INVOLVES THE FOLLOWING:

- | | |
|---|--|
| ☐ discovery: comply with demand for documents | ☐ discovery: production of additional documents |
| ☐ other matters concerning document discovery | ☐ extend oral discovery |
| ☐ other matter concerning oral discovery | ☐ amend pleadings |
| ☐ add/change parties | ☐ summary judgment |
| ☐ summary trial | ☐ service |
| ☐ interim order | ☐ change order |
| ☐ adjournments | ☐ proceedings at trial |
| ☐ appointment of additional expert(s): financial matters | ☐ other matters concerning experts |
| ☐ none of the above | |